

24STCV26225 24STCV26225

County: los-angeles

Division: Civil Law and Motion

Department: 512

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Case Number: 24STCV26225 Hearing Date: August 6, 2026 Dept: 512

HEARING DATE: Thurs., August 6, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Vakilzadeh

v. Noormohamadi, et al. COMP.

FILED: 10-09-24

CASE NUMBER: 24STCV26225

NOTICE: OK

PROCEEDINGS: DEMURRER

TO THE COMPLAINT AND MOTION TO STRIKE

MOVING PARTY: Defendant

Aryell Cohen

RESP. PARTY: Plaintiff Ramin Vakilzadeh

DEMURRER WITH MOTION TO STRIKE

(CCP §§ 430.10, et seq.; 435; 436)

TENTATIVE RULING:

Defendant Aryell Cohen's Demurrer to

Complaint of Plaintiff is OVERRULED in part and SUSTAINED in part.

The Demurrer is SUSTAINED WITH 20

DAYS' LEAVE TO AMEND as to the eleventh cause of action against Cohen and
OVERRULED as to the remaining causes of action against Cohen.

Plaintiff is to file an Amended
Complaint within 20 days of this ruling.

Defendant's Motion to Strike
Plaintiff's Complaint is DENIED.

Moving party is ordered to
give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on July 24, 2026 ☐ Late ☐ None

REPLY: Filed
on July 28, 2026 ☐
Late ☐ None

ANALYSIS:

I.
Background

On October 9, 2024, Plaintiff Ramin
Vakilzadeh ("Plaintiff") sued Defendants Fatemeh Noormohamadi, Aryell Cohen,
and Balboa Biltmore Condominium Association, Inc. ("Defendants") and Does 1-50,
alleging causes of action for tortious breach of the warranty of habitability;
contractual breach of implied warranty of habitability; breach of contract; breach

of the covenant of quiet enjoyment; negligence; private nuisance; premises liability; violations of the UCL; and violation of Los Angeles Municipal Code ("LAMC") section 45.30, et seq. (See Compl.) Plaintiff alleges Defendants allowed Plaintiff's unit to become and remain uninhabitable through negligent plumbing repairs, which caused water intrusions and toxic mold.

On January 31, 2025, the Court overruled Noormohamadi's demurrer to the Complaint and denied Noormohamadi's motion to strike portions of the Complaint. (1/31/25 Order.)

On March 3, 2025, Noormohamadi filed an Answer.

On April 14, 2025, Balboa Biltmore Condominium Association, Inc. filed an Answer.

On May 12, 2026, Defendant filed the instant Demurrer to Plaintiff's Complaint (the "Demurrer") and Motion to Strike (the "Motion").

On May 19, 2026, Cohen filed Notice of Continuance of the Demurrer and Motion.

On July 24, 2026, Plaintiff filed a combined Opposition to the Demurrer and Motion.

On July 28, 2026, Defendant filed a combined Reply to the Demurrer and Motion.

II.

Procedural
Issues

As an initial matter, the Court notes there are some numerical discrepancies as to the causes of action in the Complaint. To mitigate confusion, the Court will refer to the actual numerical place that each cause of action falls in the Complaint rather than their numerical titles in the Complaint.

III.

Legal

Standard

“As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

A general demurrer may be brought under Code of Civil Procedure section 430.10, subdivision (e) if insufficient facts are stated to support the cause of action asserted or under section 430.10, subdivision (a), where the court has no jurisdiction of the subject of the cause of action alleged in the pleading. All other grounds listed in Section 430.10, including uncertainty under subdivision (f), are special demurrers.

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245).

IV.

Discussion

A. Demurrer

Meet and Confer

Code of Civil Procedure

section 430.41 requires that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).)

The Demurrer is accompanied by a meet and confer declaration as required by Code of Civil Procedure section 430.41, subdivision (a). According to the Demurrer, the parties exchanged letters regarding the issues raised in the Demurrer. (Demurrer, Alvarez Decl.)

The parties failed to meet and confer in person, by telephone, or by video conference, and thus the Court finds the meet and confer requirement is not satisfied. While the Court may not overrule a demurrer for failure to adequately meet and confer (Code Civ. Proc., § 430.41(a)(4)), the Court cautions the parties to abide by their statutory obligations in the future.

Analysis

Cohen demurs to the negligence, premises liability, nuisance, UCL, and LAMC claims against Cohen on the basis that the Complaint fails to plead facts sufficient to satisfy the elements for each cause of action. Specifically, Cohen asserts that the negligence, premises liability, and nuisance claims are duplicative; the elements for a UCL cause of action are inadequately pled; and a LAMC claim against Cohen is inapt as the Complaint does not plead Cohen is a landlord or that Plaintiff gave Cohen proper statutory notice under the LAMC prior to filing suit.

In Opposition, Plaintiff states the Complaint states sufficient facts to state all causes of action. Plaintiff highlights that the Court previously overruled a demurrer raising similar arguments as the instant Demurrer, and Plaintiff states there is nothing duplicative about any of the causes of action. Rather, Plaintiff pleads

alternative theories of liability, which are permissible and proper in a Complaint.

In Reply, Cohen contends the Opposition does not demonstrate that the challenged causes of action are legally sufficient and reiterates arguments made in the Demurrer. Further, Cohen asserts that Plaintiff's reliance on the Court's prior order overruling Noormohamadi's demurrer as grounds to overrule the instant Demurrer is misplaced.

Initial
Matters

First,
the Court notes that the Demurrer's contentions regarding a UCL claim raised against Cohen is unfounded – the UCL claim in the Complaint is only raised as to Noormohamadi. As such, the Court does not address Cohen's contentions regarding this cause of action.

Next, the
Court finds that Plaintiff's contention in the Opposition that the Court's prior ruling on a demurrer and motion raised by a separate party warrants automatic overruling of the instant Demurrer and denying of the instant Motion is unsupported and legally incorrect.

Sixth, Eighth, and Ninth Causes of
Action – Negligence, Private Nuisance, and Premises Liability

Here, the Demurrer does not challenge
the substance of the negligence, private nuisance, and premises liability causes of action but instead contends that all three pled together in the Complaint is impermissibly duplicative.

The Court finds this argument is
unavailing and inadequately supported, and the circumstances in this action are distinguishable from those in the case law cited by Cohen and other cases as well. For instance, *El Escorial Owners' Assn. v. DLC Plastering, Inc.* (2007) 154 Cal.App.4th 1337, 1349 and *Melton v. Boustred* (2010) 183 Cal.App.4th 521, 542 state that a nuisance claim is a negligence claim when it relies on the same facts about lack of due care, but

neither case supports the proposition that a sufficiently alleged nuisance claim is subject to demurrer when the concurrently pled negligence claim is satisfactorily pled and/or unchallenged. Indeed, while the Court in Melton sustained a demurrer to a nuisance cause of action, the demurrer was first and also sustained as to the negligence cause of action. (See Melton, supra, 183 Cal.App.4th 521.) These circumstances are distinguishable from the instant circumstances where the substance of the nuisance and negligence causes of action are not challenged by the instant demurrer.

Furthermore,

Plaintiff is permitted to state “multiple causes of action based on various theories of liability” in the Complaint. (See Stoiber v. Honeychuck (1980) 101 Cal.App.3d 903, 932.)

Finally, the Court finds the Complaint states sufficient facts to plead these three causes of action.

Accordingly, the Demurrer is OVERRULED as to the sixth, eighth, and ninth causes of action.

Eleventh Cause of Action – Violation of LAMC section 45.30, et seq.

LAMC

section 45.30, et seq. is the Tenant Anti-Harassment ordinance that provides protection to residential tenants to prohibit and deter tenant harassment by landlords in rental units. (See LAMC, §§ 45.30, et seq., 45.31.)

Here,

the Complaint does not allege that Cohen is a landlord of Plaintiff; rather, the Complaint states that Cohen is a neighbor of Plaintiff. (Compl., ¶¶ 4, 20.) Indeed, the Complaint states that Plaintiff leased unit M-5 at a residential condominium building from Defendant Noormohamadi, and Cohen lived in unit M-6 of the residential condominium building. (Compl., ¶¶ 4, 17-20.)

Thus,

the Court does not find that the Complaint states sufficient facts to allege a cause of action under LAMC section 45.30, et seq. against Cohen given that this code provision applies to landlords and tenants, and the Complaint does not plead Cohen is Plaintiff's landlord.

Thus,
the Demurrer is SUSTAINED as to the eleventh cause of action.

As this is the first challenge to the
Complaint by Cohen, the Court finds granting leave to amend is warranted.
Accordingly, the Demurrer is SUSTAINED WITH LEAVE TO AMEND as to the eleventh
cause of action against Cohen.

The
Demurrer is OVERRULED in part and SUSTAINED in part.

The Demurrer is SUSTAINED WITH LEAVE
TO AMEND as to the eleventh cause of action against Cohen and OVERRULED as to
the remaining causes of action against Cohen.

B. Motion to Strike

Cohen moves to
strike Plaintiff's requests for specific dollar amounts as to the personal
injury and emotional distress damages; statutory damages; civil penalties;
unsupported anti-discrimination allegations; and improper UCL remedies.

In Opposition, Plaintiff
states the Motion should be denied on the grounds that the Court previously
denied another party's motion to strike certain damages and allegations from
the Complaint. (Opp., p. 10.)

In Reply, Cohen
states that Plaintiff's reliance on the prior ruling does not dictate the
Court's ruling on the instant Motion. The Reply then reiterates arguments
raised in the Motion.

Legal Authority

California law authorizes a party's
motion to strike matter from an opposing party's pleading if it is irrelevant,
false, or improper. (Code Civ. Proc. §§ 435, 436.) Motions may also target
pleadings or parts of pleadings that are not filed or drawn in conformity with
applicable laws, rules, or orders. (Code Civ. Proc. § 436, subd. (b).)

The Code of

Civil Procedure also authorizes the Court to act on its own initiative to strike matters, empowering the Court to enter orders striking matter “at any time in its discretion, and upon terms it deems proper.” (Code Civ. Proc. § 436.)

Finally, Code of Civil Procedure

section 435.5 requires that “[b]efore filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to the motion to strike for the purpose of determining whether an agreement can be reached that resolves the objections to be raised in the motion to strike.” (Code Civ. Proc. § 435.5, subd. (a).) (Emphasis added.)

Meet and Confer

As an initial matter, the Court finds Cohen has not satisfied the meet and confer requirement of Code of Civil Procedure section 435.5, as the parties merely exchanged meet and confer letters and thus failed to meet and confer in person or by telephone prior to filing the instant Motion. (Motion, Alvarez Decl.)

Analysis

Here, the Court finds that the

Complaint’s allegations support the damages and forms of relief sought in the Complaint, including specific amounts for general and specific damages; statutory damages; and civil penalties.

While some of the damages sought do

not apply to the causes of action raised against Cohen, this is not grounds to strike the requests entirely from the Complaint. Indeed, as long as the Complaint, taken as a whole and in light of all causes of action raised within it, includes sufficient allegations to support the relief requested, striking the Complaint’s requested relief is improper.

Thus, the Motion is DENIED as to its

request to strike specific damages amounts, statutory damages, and civil penalties.

Given that the Demurrer was sustained
as to the LAMC cause of action against Cohen, the Court finds the Motion's request
to strike allegations relating to the LAMC cause of action against Cohen is now
MOOT.

Thus, the Motion is DENIED.

IV.

Conclusion

& Order

For the foregoing reasons, Defendant
Aryell Cohen's Demurrer to Complaint of Plaintiff is OVERRULED in part and
SUSTAINED in part.

The Demurrer is SUSTAINED WITH 20
DAYS' LEAVE TO AMEND as to the eleventh cause of action against Cohen and
OVERRULED as to the remaining causes of action against Cohen.

Defendant's Motion to Strike
Plaintiff's Complaint is DENIED.

Plaintiff is to file an Amended
Complaint within 20 days of this ruling.

Moving party is ordered to
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